

Elevator Constructors Annuity and 401(k) Retirement Plan

19 Campus Boulevard, Suite 200
Newtown Square, Pennsylvania 19073-3288
(800) 523 4702

Notice Regarding the Elevator Constructors Annuity and 401(k) Retirement Plan's Appeal Procedures

■ APPEALS

If your application for distribution or other claim for benefits is denied, in whole or in part, you may request the Elevator Constructors Annuity and 401(k) Retirement Plan's Board of Trustees ("Trustees") to review such denial by submitting a written appeal to the Trustees at the address listed above. Your written appeal must be submitted to the Benefits Office within 180 days of receiving the denial notice. Failure to file a timely appeal will result in a complete waiver of your right to appeal, and the denial of your application for distribution or other claim for benefits will be final and binding.

Upon receipt of an adverse benefit determination, you are entitled to receive, upon request and free of charge, reasonable access to, and copies of, relevant information regarding the claim determination.

Your written appeal should state your name and address, the date of the denial, the fact that you are appealing the denial, and the reasons for your appeal. You should include documents that support your claim. The review of your appeal will take into account all comments and documents that support your position, even if the Benefits Office or MassMutual did not have this information in making the initial determination. This does not mean that you are required to cite all of the Plan provisions that apply or to make "legal" arguments; however, you should state clearly why you believe you are entitled to the benefit you claim. The Trustees can best consider your position if they clearly understand your claims, reasons and/or objections.

The Trustees or a designated committee of the Trustees will review your appeal at their quarterly meeting immediately following receipt of your appeal unless your appeal was received by the Benefits Office within 30 days of the date of the meeting. If your appeal is received by the Benefits Office within 30 days of the date of the meeting, the Trustees may not be able to review your appeal until the second quarterly meeting following the Benefits Office's receipt of the appeal. You may wish to contact the Benefits Office concerning the date of the next meeting so that you may submit your appeal in time to be heard at that meeting. If special circumstances require a further extension of time for review for the Trustees, a benefit determination will be rendered not later than the third Trustees' meeting following receipt of your appeal. You will be notified in writing prior to the extension of the circumstances requiring an extension and the date by which the Trustees expect to reach a decision. You will receive written or electronic notice of the decision of the Trustees after review by the Trustees, usually within 5 days of their decision.

■ CONTENT OF NOTIFICATION

This notice will set forth the specific reason(s) for the adverse determination, the specific Plan provisions on which the benefit determination is based, a statement that you are entitled to receive, upon request and free of charge, reasonable access to and copies of, relevant information regarding a claim determination, and a statement of your right to bring a civil action under Section 502(a) of ERISA. The decision of the Trustees is final and binding upon all parties including the claimant and any person claiming a benefit on behalf of the claimant.

■ TRUSTEES' DECISION ON APPEAL IS FINAL AND BINDING

The Trustees have full discretion or authority to determine all matters relating to the benefits provided under this Plan including, but not limited to, all questions of coverage, eligibility, and methods of providing or arranging for benefits.

■ **PLAN POLICIES, DETERMINATIONS OR ACTIONS**

If you disagree with a policy, determination or action of the Plan, you may request the Trustees to review the Plan policy, determination or action with which you disagree by submitting a written appeal to the Trustees. Your written appeal must be submitted within 60 days after you learn of a Plan policy, determination or action with which you disagree and which is not a denial of your application for distribution or other claim for benefits. Your written appeal should state the reasons for your appeal. This does not mean that you are required to cite all applicable Plan provisions or to make “legal” arguments; however, you should state clearly why you believe you are entitled to the benefit you claim or why you disagree with a policy, determination, or action. The Trustees can best consider your position if they understand your claims, reasons and/or objections.

The Trustees or a designated committee of the Trustees will review your appeal at their quarterly meeting immediately following receipt of your appeal unless your appeal was received by the Benefits Office within 30 days of the date of the meeting. If your appeal is received by the Benefits Office within 30 days of the date of the meeting, the Trustees may not be able to review your appeal until the second quarterly meeting following the Benefits Office’s receipt of the appeal. You may wish to contact the Benefits Office concerning the date of the next meeting so that you may submit your appeal in time to be heard at that meeting. If special circumstances require an extension of the time for review, you will be notified in writing.

■ **GENERAL INFORMATION ON APPEALS**

You may designate a representative to act on your behalf in filing a claim or an appeal of a denial relating to your application for distribution, other claim for benefits or other adverse determination. If the Benefits Office or Trustees are uncertain whether or not you have designated a representative, they may request that you put such designation in writing and may decline to communicate with a third party claiming to be your representative until such written designation is received.

All determinations of appeals will be made in accordance with the Plan document, policies and rules and will apply the Plan provisions consistently, to the extent reasonable, with respect to similarly situated claimants.

Throughout the procedures described in this notice, there are several time limits within which a claimant must file an appeal and within which the Trustees must issue a decision on such appeal. The Trustees may agree to extend the time limits within which the claimant must file and the claimant may agree to extend any time limit within which the Trustees must issue a decision. The agreement of the Trustees to extend a time limit must be knowing, explicit, and confirmed in writing before the time period in question expires.

The Trustees have full discretion and authority to determine all matters relating to the benefits provided under this Plan including, but not limited to, all questions of coverage, eligibility, and methods of providing or arranging for benefits. If the Trustees deny your appeal relating to your application for distribution, other claim for benefits, or challenged policy, determination or action, and you decide to seek judicial review, the Trustees’ decision is subject to limited judicial review to determine only whether the decision was arbitrary and capricious.